

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 16-16

MAVL CAPITAL, INC.,
IAM & AL GROUP INC., and MAXIM OSTROVSKIY,

Complainants,

– vs. –

MARINE TRANSPORT LOGISTICS, INC. and DIMITRY ALPER,

Respondents.

**COMPLAINANTS' RESPONSES TO RESPONDENT MARINE TRANSPORT
LOGISTICS, INC.'S STATEMENT OF PROPOSED FACTS ON REMAND**

Complainants MAVL CAPITAL, INC., IAM & AL GROUP INC., and MAXIM OSTROVSKIY (collectively "complainants") respectfully submit this response to the Statement of Proposed Facts on Remand by Marine Transport Logistics Inc. ("MTL"), pursuant to the Presiding Officer's Remand Scheduling Order of December 10, 2020 as amended by Order February 5, 2021, March 1, 2021 and March 29, 2021.

1. The following email address belonged to Mr. Ostrovskiy in 2013: MAXIM@autolehmann.ru.

Complainants' Response: Complainants deny the allegations in paragraph "1" of MTL's Statement of Proposed Facts on Remand as conclusory and unsupported with a citation to any admissible evidence on the record in this matter. The above referenced email address never belonged to complainants and MTL's production for the first time of an alleged email delivery error notification is an attempt to mislead the Presiding Officer into believing that the email referenced below in MTL's proposed facts allegedly existed. Despite having demanded that MTL produce Native Electronic Copies of their emails for discovery and inspection as to its authenticity in the federal court litigation in the Eastern District of New York, MTL refused to do so. Also, both Alexander Solovyev and Alla Solovyeva provided Certifications on January 11, 2019 in response to a Court Order to produce documents including email communications. Despite never having produced any

emails which contained the email address of MAXIM@autolehmann.ru, that Certification explained that “no additional responsive documents exist, other than what was already provided to date...” (see, Complainants’ Remand Brief at p. 59) (see also, Complainants’ Motion for Discovery Related Sanctions Document 59 on this docket, filed on January 27, 2021 at Appendix “V”, “W” and “X”). As set forth in the record, at all times both prior to and after the date of the alleged email, MTL always communicated with Mr. Ostrovskiy using his in-house email address at MTL of ceosbp@mtlworld.com. See, complainants’ proposed FF# 109 referring to the Declaration of Alexander Solovyev. Paragraph 14 of that Declaration makes reference to a series of emails on April 16, 2013 between mtlworld@mtlworld.com, alla@mtlworld.com and ceosbp@mtlworld.com. Paragraphs 28 and 30 of that Declaration make reference to emails of April 18, 2013 and April 20, 2013. All of the foregoing emails were sent to Mr. Ostrovskiy prior to the alleged emails to MAXIM@autolehmann.ru of January 11, 2013 and May 9, 2013 which are alleged below. The emails annexed to the Declaration of Alexander Solovyev also establish that MTL communicated with Mr. Ostrovskiy using his email address of ceo@oooacca.net (Paragraphs 15, 16 and 18 of the Solovyev Declaration). See, also, complainants’ proposed FF# 43 referring to the Declaration of Dimitry Alper (Appendix “F”). Paragraphs “13” through “15”, “19” and “23” make reference to a series of emails in June and July of 2013 between MTL and complainants’ email addresses of ceo@oooacca.net, and l1@oooacca.net.

2. Mr. Ostrovskiy received the email from MTL on January 11, 2013. (Exhibit “1”, page 5).

Complainants’ Response: Complainants deny the allegations in paragraph “2” of MTL’s Statement of Proposed Facts on Remand as conclusory and unsupported with a citation to any admissible evidence on the record in this matter. Complainants never received the email identified by MTL because no such email ever existed. Despite having demanded that MTL produce Native Electronic Copies of their emails for discovery and inspection as to its authenticity in the federal court litigation in the Eastern District of New York, MTL refused to do so. Complainants add that the document contained within Exhibit “1”, page 5 to MTL’s Appendix is neither bates numbered indicating that they were produced in this or related litigation nor does said document bear a header indicating that it had been filed on a federal court docket. Additionally, even if Mr. Ostrovskiy were to have received this e-mail, it would not be necessary to respond to it because that e-mail simply confirmed certain information to Mr. Ostrovskiy: “Invoice for storage fee is attached. next invoice for \$150 will be generated on 2/03. Invoice (18091). pdf 52K”.

This is exactly what was agreed to between the parties - - storage of the Mercedes for a \$150 flat fee per month prior to export back to Germany. This flat fee of \$150 per month was admitted to by MTL (See Answer to the Complaint ¶30). Also, both Alexander Solovyev and Alla Solovyeva provided Certifications on January 11, 2019 in response to a Court Order to produce documents including email communications. Despite never having produced any emails which contained the email address of MAXIM@autolehmann.ru, that Certification explained that “no additional responsive documents exist, other than what was already provided to date...” (see, Complainants’ Remand Brief at p. 59) (see also, Complainants’ Motion for Discovery Related Sanctions Document 59 on this docket, filed on January 27, 2021 at Appendix “V”, “W” and “X”).

As set forth in the record, at all times, MTL always communicated with Mr. Ostrovskiy using his in-house email address at MTL of ceosbp@mtlworld.com. See, complainants' proposed FF# 109 referring to the Declaration of Alexander Solovyev. Paragraph 14 of that Declaration makes reference to a series of emails on April 16, 2013 between mtlworld@mtlworld.com, alla@mtlworld.com and ceosbp@mtlworld.com. Paragraphs 28 and 30 of that Declaration make reference to emails of April 18, 2013 and April 20, 2013. The emails annexed to the Declaration of Alexander Solovyev also establish that MTL communicated with Mr. Ostrovskiy using his email address of ceo@oooacca.net. See, also, complainants' proposed FF# 43 referring to the Declaration of Dimitry Alper (Appendix "F"). Paragraphs "13" through "15", "19" and "23" make reference to a series of emails in July of 2013 between MTL and complainants' email addresses of ceo@oooacca.net, and l1@oooacca.net. Complainants further respectfully refer the Presiding Officer to pp. 3-5 and 11-15 of Complainants' Motion for Discovery Related Sanctions and Other Relief as to the lack of authenticity of these documents. See also, complainants' response to the allegations in paragraph "1" of MTL's Statement of Proposed Facts on Remand.

3. Mr. Ostrovskiy did not respond to the email referenced in #2 above.

Complainants' Response: Complainants admit that they never responded to the email referenced in paragraph "2" of MTL's Statement of Proposed Facts on Remand because no such email ever existed and accordingly, complainants never received such email. See also, complainants' response to the allegations in paragraphs "1" and "2" of MTL's Statement of Proposed Facts on Remand, which are incorporated herein.

4. Mr. Ostrovskiy received the email from MTL on May 10, 2013. (Volume 1, page 159).

Complainants' Response: Admit to the extent that such email contained *only* an attached MTL "Open Invoices" List with a Total amount of \$900.00, identifying MTL Invoice Nos.: 18091, 19098, 20622, 23343, 23344, and 24261 for \$150.00 each together with a copy of final invoice No.: 24261 in the amount of \$150.00. That email *did not* contain Invoice Nos.: 18091, 19098, 20622, 23343, and 23344. See, Complainants proposed Finding of Fact on Remand #20 and Appendix "F" thereto.

5. Mr. Ostrovskiy did not respond to the email referenced in #4 above. (Volume 1, page 153, ¶11.)

Complainants' Response: Denied. See, complainants' proposed FF# 107 explaining that on or about June 1, 2013 Maxim Ostrovskiy visited MTL's storage site and provided instructions to ship the Mercedes to Germany. (citing to Certification of Maxim Ostrovskiy on this Docket, filed on October 3, 2016, at ¶¶ 13-14). Additionally, paragraphs "110" and "111" of Complainants' Proposed Findings of Fact on Remand explain that as to the Porsche, Mr. Ostrovskiy paid \$10,000.00 directly to RFG for ocean freight and other charges (citing to the Declaration of Maxim Ostrovsky at ¶ 40 thereof and Exhibit "G" to the Complaint in the Eastern District of New York litigation [at Page 45 of 67] which contained the wire of April 22, 2013 in the amount of \$10,000.00). After

complainants prepaid these monies up front for ocean freight and other charges to MTL, MTL never provided a statement of account regarding these monies after April 22, 2013, nor did it provide same with the email referenced above from MTL on May 10, 2013, nor did it provide same before or after Mr. Ostrovskiy's June 1, 2013 visit to MTL's storage site.

6. Mr. Ostrovskiy's email address referenced in #1 above was disabled at the time MTL sent the email on May 9, 2013. (Exhibit "1", page 1).

Complainants' Response: Complainants deny the allegations in paragraph "6" of MTL's Statement of Proposed Facts on Remand. See complainants' responses to the allegations in paragraphs "1" and "2" of MTL's Statement of Proposed Facts on Remand, which are incorporated herein.

7. Mr. Ostrovskiy did not notify any MTL personnel of any change in his contact information, and Mr. Ostrovskiy did not notify any MTL personnel that any of his email addresses would be disabled.

Complainants' Response: Deny in that there was never any change in Mr. Ostrovskiy's contact information and that MTL at all times had communicated with Mr. Ostrovskiy on a regular basis using multiple email addresses as set forth above. See complainants' responses to the allegations in paragraphs "1" and "2" of MTL's Statement of Proposed Facts on Remand, which are incorporated herein.

8. Mr. Ostrovskiy's company, IAM & AL Group Inc., became inactive on August 19, 2015, and Mr. Ostrovskiy's company, MAVL Capital, Inc., was dissolved on June 29, 2016.

Complainants' Response: Complainants deny the allegations in paragraph "8" of MTL's Statement of Proposed Facts on Remand as conclusory and unsupported with a citation to any admissible evidence on the record in this matter. Even if this alleged fact were supported by admissible evidence, the response is: "so what"? It is black letter law that an inactive/dissolved corporation has a right to sue for damages that occurred prior to its dissolution/inactive status.

9. Mr. Ostrovskiy never notified MTL or any of its personnel of the dissolution of any of his companies.

Complainants' Response: Complainants deny the allegations in paragraph "9" of MTL's Statement of Proposed Facts on Remand as conclusory and unsupported with a citation to any admissible evidence on the record in this matter. Even if this alleged fact were supported by admissible evidence, the response is: "so what"? It is black letter law that an inactive/dissolved corporation has a right to sue for damages that occurred prior to its dissolution/inactive status.

10. Mr. Ostrovskiy did not pay to MTL for any services with respect to the subject Mercedes. (Docket Entry #60, page 4).

Complainants' Response: Complainants deny the allegations in paragraph "10" of MTL's Statement of Proposed Facts on Remand. Complainants never received the email identified by MTL in Docket Entry #60, page 4. Complainants add that the document contained within Docket Entry #60, page 4 is neither bates numbered indicating that they were produced in this or related litigation nor does said document bear a header indicating that it had been filed on a federal court docket. Additionally, such payment to MTL with respect to the subject Mercedes was not required prior to shipment. Specifically, see, complainants' proposed FF# 38 (admitted to by MTL). See, also complainants' proposed FF# 104 (admitted to by MTL) which explains that pursuant to MTL's tariff, that "...those charges apply in addition to ocean freight rates and all other charges provided herein.."; and complainants' proposed FF# 106 explaining that pursuant to MTL's invoices, "...Payments must be received no later than 10 business days after sailing date...". Mr. Ostrovskiy never received invoices or any indication that payments were due after the sailing of the Mercedes overseas. As set forth above in Complainants' Response No.: 5 above, which is incorporated herein by reference, Mr. Ostrovskiy additionally pre-paid \$10,000.00 to MTL for ocean freight and other charges and MTL never provided complainants with a statement of account for these monies.

11. Mr. Ostrovskiy did not pay to MTL for any services with respect to the subject Porsche. (Docket Entry #60, page 4).

Complainants' Response: Complainants deny the allegations in paragraph "11" of MTL's Statement of Proposed Facts on Remand in that such payment was not required prior to shipment and for additional reason set forth below. Specifically, see, complainants' proposed FF# 38 (admitted to by MTL) which explains that pursuant to MTL's tariff, that "...shipper will be entitled to 30 days free storage starting from the date of arrival of the vehicle at the warehouse in order to allow time to provide the Carrier with the vehicle title...". See, also complainants' proposed FF# 104 (admitted to by MTL) (same); and complainants' proposed FF# 106 explaining that pursuant to MTL's invoices, "...Payments must be received no later than 10 business days after sailing date...". As set forth above in Complainants' Response No.: 5 above, which is incorporated herein by reference, Mr. Ostrovskiy additionally pre-paid \$10,000.00 to MTL for ocean freight and other charges and MTL never provided complainants with a statement of account for these monies.

12. Complainants have not had any discussions with MTL with respect to the subject Porsche.

Complainants' Response: Complainants deny the allegations in paragraph "12" of MTL's Statement of Proposed Facts on Remand as conclusory and unsupported with a citation to any admissible evidence on the record in this matter. Additionally, see, complainants' proposed FF# 97-98 explaining that the Bill of Lading from Y&N Towing Transport Inc. for the inland transport of the Porsche indicates pickup from the IAAI auto

auction warehouse where it was purchased, and delivery to MTL's warehouse, with a handwritten note on a 'Post It' which reads: "Max Ostrovskiy", and that RFG issued an invoice to MAVL on April 20, 2013 for the Porsche, which included a charge of \$700.00 for: "Shipping to Kotka".

13. Complainants have a history of not paying for services rendered by MTL.

Complainants' Response: Complainants deny the allegations in paragraph "13" of MTL's Statement of Proposed Facts on Remand as conclusory and unsupported with a citation to any admissible evidence on the record in this matter. Additionally, complainants deny the allegations for the reasons set forth in the foregoing responses to MTL's Statement of Proposed Facts on Remand including that pursuant to MTL's tariff, that "...shipper will be entitled to 30 days free storage starting from the date of arrival of the vehicle at the warehouse in order to allow time to provide the Carrier with the vehicle title..."; and that pursuant to MTL's invoices, "...Payments must be received no later than 10 business days after sailing date...". Additionally, this allegation is denied due to the fact that MTL has a history of not providing complainants with a statement of account for monies allegedly due and owing. See Responses Nos.: 10 and 11 above, which are incorporated herein.

14. Mr. Ostrovskiy did not produce any evidence concerning any repairs made or contemplated with respect to any of the subject vehicles. Complainants' own Statement of Proposed Findings of Fact, ¶29.

Complainants' Response: Complainants deny the allegations in paragraph "14" of MTL's Statement of Proposed Facts on Remand in that complainants planned the repairs at their own discretion. See, complainants' proposed FF# 107 explaining that on or about June 1, 2013 Maxim Ostrovskiy visited MTL's storage site and provided instructions to ship the Mercedes to Germany, and that with regard to the Porsche, the car was purchased and sold to "Sokolov Oleg Yuryevich" for \$67,000.00 pursuant to a contract (see, complainants proposed FF# 114). See also, Monetary Funds Receipt and Letter of Claim in original Russian with Certified English translation produced in the Eastern District of New York litigation, a copy of which is provided for the Presiding Officer's convenience as Attachment "1" hereto.

15. Complainants failed to pay for a shipment of chairs for vehicles that were loaded and sent to Bremerhaven, Germany. Docket Entry #60 and accompanying exhibits.

Complainants' Response: Denied. This allegation is irrelevant to the two automobiles at issue herein. Complainants add that MTL never provided a statement of account for shipping charges allegedly due and owing for this cargo. Additionally, the Presiding Officer specifically ordered the parties to limit their briefing to the Mercedes and Porsche only.

16. Complainants failed to pay for any services rendered by MTL with respect to the 2012 Volkswagen Jetta. Id and accompanying exhibits.

Complainants' Response: Denied. This allegation is irrelevant to the two automobiles at issue herein. Complainants add that MTL never provided a statement of account for shipping charges allegedly due and owing for this cargo. Additionally, the Presiding Officer specifically ordered the parties to limit their briefing to the Mercedes and Porsche only.

17. Complainants failed to pay for any services rendered by MTL with respect to the Bobcats motorcycles. Id and accompanying exhibits. Additionally, Mr. Ostrovskiy received money for the sale of a Bobcat motorcycle, worth \$12,900, from Roman Sobolev. Mr. Ostrovskiy, when he could not deliver the motorcycle to Mr. Solbolev, failed to refund the money to Mr. Sobolev. Mr. Sobolev obtained a Default Final Judgment against Mr. Ostrovskiy. Id. at 38.

Complainants' Response: Denied. This allegation is irrelevant to the two automobiles at issue herein. Complainants add that MTL never provided a statement of account for shipping charges allegedly due and owing for this cargo. Additionally, the Presiding Officer specifically ordered the parties to limit their briefing to the Mercedes and Porsche only.

18. Complainants failed to pay for any services rendered by MTL with respect to the 2014 Volvo. Id and accompanying exhibits.

Complainants' Response: Denied. This allegation is irrelevant to the two automobiles at issue herein. Complainants add that MTL never provided a statement of account for shipping charges allegedly due and owing for this cargo. Additionally, the Presiding Officer specifically ordered the parties to limit their briefing to the Mercedes and Porsche only.

19. Mr. Safonov from MEAA never produced any documents that would support his contention that he paid for repairs of the subject Mercedes. (See MTL's Response to Proposed Finding of Fact #57.

Complainants' Response: Denied. While this proposed finding of fact is irrelevant to the matters at hand, Mr. Sofonov did produce an invoice for his repairs of the subject Mercedes. (See Proposed Finding of Fact #57.)

20. Mr. Ostrovskiy, in or around November of 2012, appeared at MTL's office. Exhibit "3."

Complainants' Response: Complainants deny the allegations in paragraph "20" of MTL's Statement of Proposed Facts on Remand as conclusory. Complainants add that the documents contained within Exhibit "3" to MTL's Appendix were never produced in the underlying proceedings or other related litigation, nor were they part of the record in this matter. Complainants further add that the documents contained within Exhibit "3" to

MTL's Appendix are neither bates numbered indicating that they were produced in this or related litigation nor do said documents bear a header indicating that they have been filed on a federal court docket. Complainants further respectfully refer the Presiding Officer to Complainants' Motion for Discovery Related Sanctions and Other Relief as to the lack of authenticity of these documents. See also, Complainants' Response Nos.: 1 and 2 above, which are incorporated herein. This allegation is irrelevant to the two automobiles at issue herein. Complainants add that MTL never provided a statement of account for shipping charges allegedly due and owing for this cargo. Additionally, the Presiding Officer specifically ordered the parties to limit their briefing to the Mercedes and Porsche only.

21. When Mr. Ostrovskiy appeared in MTL's office in or around November of 2012, he had not satisfied his financial obligation to Atlantic Cargo Logistics. Id.

Complainants' Response: Complainants deny the allegations in paragraph "21" of MTL's Statement of Proposed Facts on Remand as conclusory. Complainants add that the documents contained within Exhibit "3" to MTL's Appendix were never produced in the underlying proceedings or other related litigation, nor were they part of the record in this matter. Complainants further add that the documents contained within Exhibit "3" to MTL's Appendix are neither bates numbered indicating that they were produced in this or related litigation nor do said documents bear a header indicating that they have been filed on a federal court docket. Complainants further respectfully refer the Presiding Officer to Complainants' Motion for Discovery Related Sanctions and Other Relief as to the lack of authenticity of these documents. See also, Complainants' Response Nos.: 1, 2 and 21 above, which are incorporated herein.

22. When Mr. Ostrovskiy appeared in MTL's office in or around November of 2012, he had received all documents/receipts/reports with respect to the subject vehicles.

Complainants' Response: Complainants deny the allegations in paragraph "22" of MTL's Statement of Proposed Facts on Remand as conclusory and unsupported with a citation to any admissible evidence on the record in this matter. Additionally, complainants deny the allegations in that the Porsche was not even delivered to MTL's storage facility until April 22, 2013 (see complainants' proposed FF# 96-97). See also, Complainants' Response Nos.: 1, 2 and 21 above, which are incorporated herein. Also and as to the Mercedes, complainants only requested on December 3, 2012 that MTL act as complainants' receiving agent for the Mercedes. See also, Alper Declaration referenced above at ¶ 7.

Dated: May 5, 2021
Brooklyn, New York

Yours, etc.,

/s/ Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.

ATTACHMENT “1”

покупатель
Островский М.А.

Исполнительному директору
MAVL CAPITAL INC
Островскому Максиму Анатольевичу

от Соколова Олега Юрьевича,
прож.: г.Москва, Ленинградский проспект, д.37

ПРЕТЕНЗИЯ

25 апреля 2013 года между мной, Соколовым Олегом Юрьевичем (далее - Покупатель) и MAVL CAPITAL INC (далее - Продавец) был заключен внешнеторговый договор купли-продажи №110516 (далее - договор) в соответствии с которым Продавец обязался передать в собственность, а Покупатель принять и оплатить автомобиль 2011 PORSCHE PANAMERA VIN :WP0AA2A75BL017399, стоимостью 67 000 долларов США, производство США, КАНАДА.

Согласно п. 3.2. договора срок поставки товара составляет 30 календарных дней с момента подписания договора. Таким образом, товар должен был быть поставлен не позднее 25.05.2013г.

В соответствии с п.п.6.1. и 6.2. договора Покупатель производит не позднее 5 календарных дней с момента подписания договора 20% предоплату в размере 13 400 долларов США, а остаток до момента отправки из США.

Однако, не смотря на выполнение мной всех условий оплаты, до настоящего времени товар не поставлен и условия поставки не выполнены.

В соответствии со ст. 307 Гражданского кодекса РФ в силу обязательства одно лицо (должник) обязано совершить в пользу другого лица (кредитора) определенное действие, как-то: передать имущество, выполнить работу, уплатить деньги и т.п., либо воздержаться от определенного действия, а кредитор имеет право требовать от должника исполнения его обязанности.

Согласно ст. 309 ГК РФ обязательства должны исполняться надлежащим образом в соответствии с условиями обязательства и требованиями закона, иных правовых актов, а при отсутствии таких условий и требований - в соответствии с обычаями делового оборота или иными обычно предъявляемыми требованиями.

На основании ст. 310 ГК РФ односторонний отказ от исполнения обязательства и одностороннее изменение его условий не допускаются, за исключением случаев, предусмотренных законом. Односторонний отказ от исполнения обязательства, связанного с осуществлением его сторонами предпринимательской деятельности, и одностороннее изменение условий такого обязательства допускаются также в случаях, предусмотренных договором, если иное не вытекает из закона или существа обязательства.

CX001

До настоящего времени товар по договору не поставлен.

Таким образом, продавцом допущен односторонний отказ от исполнения обязательства по поставке товара, оплаченного по договору, что не допускается.

В соответствии с п.12.1. Договора за нарушение срока исполнения обязательства виновная Сторона уплачивает другой стороне штрафную неустойку из расчета 0,4% от стоимости договора, не исполненного обязательства за каждый день просрочки.

Поскольку продавец своевременно не поставил оплаченный товар, то, следовательно, покупатель вправе требовать уплаты процентов на сумму задолженности в соответствии с договором.

Срок задолженности с 25 мая 2013 по 01 июня 2014 года составляет 366 дней. Неустойка за нарушение Продавцом сроков платежей составляет 98 088 (девятью восемь тысяч восемьдесят восемь) долларов США. $67\,000 \text{ (сумма договора)} \times 0,4 \text{ (неустойка)} / 100 = 268 \text{ (сумма неустойки за каждый день просрочки)}$. $268 \times 366 = 98\,088$.

На основании изложенного и приведенных выше норм права,

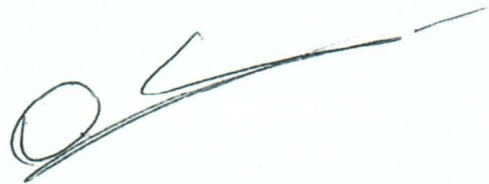
ПРОШУ:

Выплатить неустойку за неисполнение условий внешнеторгового договора купли-продажи №110516 в размере 98 088 (девятью восемь тысяч восемьдесят восемь) долларов США.

В случае невыполнения Вами требований в добровольном порядке буду вынужден обратиться в Федеральную службу в сфере защиты прав потребителей и Суд для защиты своих законных интересов, что повлечет для Вас дополнительные расходы:

- Увеличение размера требований на срок вынесения решения Суда;
- Оплата судебных издержек и услуг представителя;
- Оплата государственной пошлины;
- Увеличение размера убытков и морального вреда.

С уважением, Соколов О.Ю.



Received
Ostrovskiy M. A.
/signature/

Translation from Russian into English

To Ostrovskiy Maxim Anatolyevich,
the Executive Director
of MAVL CAPITAL INC

from Sokolov Oleg Yuryevich,
residing at the address: 37 Leningradsky Ave., Moscow

LETTER OF CLAIM

Foreign Trade Sales Contract No. 110516 (hereinafter referred to as the Contract) was concluded between me, Sokolov Oleg Yuryevich (hereinafter referred to as the Buyer) and MAVL CAPITAL INC (hereinafter referred to as the Seller) on April 25, 2013. Under this Contract the Seller undertook to transfer ownership of, and the Buyer undertook to accept and pay for 2011 PORSCHE PANAMERA motor vehicle, VIN: WP0AA2A75BL017399 for the price of 67,000.00 USD, country of manufacture: the USA, CANADA.

Under cl. 3.2 of the Contract, goods delivery period shall amount to 30 calendar days from the date of signing the Contract. Thus, the goods should have been delivered not later than May 25, 2013.

Under cl. 6.1 and 6.2 of the Contract, the Buyer shall make advance payment of 20% amounting to 13,400.00 USD within 5 calendar days from the date of signing the Contract, and the remaining amount shall be paid before shipment of the goods from the USA.

Although I fulfilled all the payment obligations, the goods have not been received and delivery conditions have not been fulfilled.

According to cl. 307 of the Civil Code of the Russian Federation, one person (the debtor) due to the obligation shall be obliged to perform in favour of another person (the creditor) a certain action, such as: to transfer the property, to perform a job, to pay the money, etc., or to abstain from a certain action, while the creditor shall have the right to claim that the debtor discharge his obligation.

According to cl. 309 of the Civil Code of the Russian Federation, obligations shall be discharged in the proper way in conformity with the terms of the obligation and with the requirements of the law and of the other legal acts, and in the absence of such terms and requirements – in conformity with the customs of the business turnover or with the other habitually presented demands.

According to cl. 310 of the Civil Code of the Russian Federation, the unilateral refusal to discharge the obligation and the unilateral amendment of its terms shall not be admitted, with the exception of the law-stipulated cases. The unilateral refusal to discharge the obligation, connected with its parties performing the business activity, and the unilateral amendment of the terms of such an obligation shall also be admissible in the cases, stipulated by the contract, unless otherwise following from the law or from the substance of the obligation.

The contractual goods have not been delivered till the present time.

Thus, the Seller has made the unilateral refusal to discharge the obligation of delivering the goods paid for according to the Contract, and it is not admitted.

Under cl. 12.1 of the Contract, a defaulting party shall pay the penalty to the other party in case of obligation fulfillment period violation amounting to 0.4% from the price of the Contract, the unfulfilled obligation for each day of delay.

As the Seller failed to timely deliver the goods paid for, the Buyer is entitled to require the interest payment for the outstanding amount under the Contract.

CX003

The delay period from May 25, 2013 to June 01, 2014 amounts to 366 days. The penalty for delivery period violation by the Seller makes up 98,088.00 (ninety-eight thousand eighty-eight) US dollars. $67,000.00$ (price of the Contract) $\times 0,4$ (the penalty)/100 = 268 (penalty for each day of delay). $268 \times 366 = 98,088.00$.

In view of the foregoing and the cited regulations,

I CLAIM

to pay the penalty for violation of the terms of the Foreign Trade Sales Contract No. 110516 amounting to up 98,088.00 (ninety-eight thousand eighty-eight) US dollars.

In case of your failure to voluntarily fulfill the request, I will have to resort to the Federal Service for Consumer Rights Protection and the court to protect my legal interest, which will result in additional costs for you:

- Increased amount of penalty for the court judgment period;
- Payment of court costs and representative services;
- Payment of the state fee;
- Increased amount of costs and moral damage.

Best regards,
Sokolov O. Yu.

/signature/

Перевод выполнен переводчиком
Огянян Дианой Сейрановной. *



The translation is performed by a translator
Diana Seyranovna Oganyan **/signature/*

Город Москва

Четвертого марта две тысячи
пятнадцатого года.

Я, Акимов Глеб Борисович, нотариус
города Москвы, свидетельствую
подлинность подписи, сделанной
переводчиком Оганян Дианой
Сейрановной в моем присутствии.
Личность её установлена.

Зарегистрировано в реестре за № 10-1234
Взыскано госпошлины (по тарифу): 100
рублей
Нотариус:



Всего пронумеровано, пронумеровано
и скреплено печатью 4
листа (ов)
Нотариус:

The city of Moscow

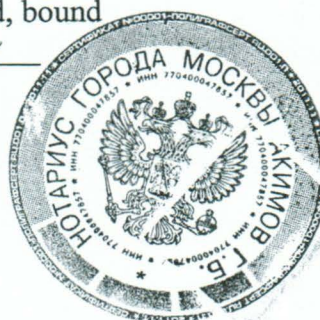
The fourth of March, year two thousand
and fifteen

I, undersigned Gleb Borisovich Akimov,
Notary public for the city of Moscow, hereby
certify the above signature is the true signature
of Diana Seyranovna Oganyan, translator,
made in my presence. The identity of the
aforesaid Mrs. Oganyan has been proved to
me.

Registered in the Register under No.
Collected as per tariff: 100 rubles

Notary public:

Total numbered, bound
and sealed 4
page(s)
Notary public:



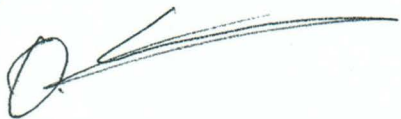
Пастернак

в получении денежных средств
г. Москва

26.04.2014 года

Я, Соколов Олег Юрьевич, 24.01.1983 года рождения (паспорт N 5535018, выдан 06.09.2007, Министерством Внутренних республике Казахстан, зарегистрирован по адресу: г. Красногорск Московской области, ул. Ленина, д. 58, кв. 35) получил от Островского Максима Анатольевича, 10.11.1982 года рождения (паспорт N 5637942, выдан 05.03.2008, Министерством Внутренних республике Казахстан, зарегистрирован по адресу: 115 E 57th Str., FL 11, New York, NY 10022, USA) денежную сумму в размере 98 088 (Девяносто восемь тысяч восемьдесят восемь) долларов США в счёт оплаты неустойки за невыполнение условий по внешнеэкономическому договору купли-продажи N 110516 от 25.04.2013г.

Денежные средства получены мною в полном объёме, претензий к Островскому Максиму Анатольевичу не имею.



Соколов О.Ю.



Островский М.А.

CX006

Monetary Funds Receipt

Moscow

April 26, 2014

I, Sokolov Oleg Yuryevich, born on January 24, 1983 (passport No. 5535018 issued by the Ministry of Justice of the Republic of Kazakhstan on September 06, 2007, registered at the address: Apt. 35, 5b Lenina Str., Krasnogorsk Town, Moscow Region) have received the monetary funds amounting to 98,088.00 (ninety-eight thousand eighty-eight) US dollars from Ostrovskiy Maxim Anatolyevich, born on November 10, 1982 (passport No. 5637942 issued by the Ministry of Justice of the Republic of Kazakhstan on March 05, 2008, registered at the address: 115E 57th Str., FL 11, New York, NY10022, USA) in payment for the penalty for violation of the terms of the Foreign Trade Sales Contract No. 110516 of April 25, 2013.

The monetary funds have been received by me in full, I have no claims against Ostrovskiy Maxim Anatolyevich.

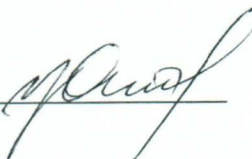
/signature/

Sokolov O. Yu.

/signature/

Ostrovskiy M. A.

Перевод выполнен переводчиком
Оганян Дианой Сейрановной. *



The translation is performed by a translator
Diana Seyranovna Oganyan */signature/

Город Москва

Четвертого марта две тысячи
пятнадцатого года.

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города Москвы, свидетельствую
подлинность подписи, сделанной
переводчиком Оганян Дианой
Сейрановной в моем присутствии.
Личность её установлена.

Зарегистрировано в реестре за № 10-1239
Взыскано госпошлины (по тарифу): 100
рублей
Нотариус:



Всего пронумеровано, пронумеровано
и скреплено печатью 2
листа (ов)
Нотариус:

The city of Moscow

The fourth of March, year two thousand
and fifteen

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me.

Registered in the Register under No.
Collected as per tariff: 100 rubles

Notary public:

Total numbered, bound
and sealed 2
page(s)
Notary public:

